

administrators and other responsible personnel negligently hired, retained, and supervised. It does not seek to impose vicarious liability for Mr. Martin's sexual abuse itself." (*Id.*, at p. 5.)

On Reply, Defendant contests Plaintiff's view that the reference to Martin in paragraphs 43, 50, 57, and 65, of the Complaint is one that identifies him as the employee Defendant's administrators negligently hired, retained, and supervised. (Reply, pp. 2-3.)

The Court agrees that the reference to Martin in paragraphs 43, 50, 57, and 65 of the Complaint, alleges that Defendant is vicariously liable for Martin's conduct. This is clear from reading the allegations. "Defendants . . . are vicariously liable for injuries to Plaintiff caused by the acts, omissions, and breach of the duty of care of their agents and employees, including but not limited to, Joseph Martin. . . ." (Complaint, ¶¶ 43, 40, 57, 65.) As there is no vicarious liability to Defendant for the sexual misconduct allegations of Martin, due to *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452, these paragraphs contain an improper assertion.

Ruling

For the reasons discussed above, the Court **GRANTS** Defendant's motion to strike as to paragraphs 43, 50, 57, and 65 of the Complaint, with leave to amend. Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

8. 9:00 AM CASE NUMBER: C25-02103
CASE NAME: JESUS HUERTA VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: ORDER TO APPOINT DECEASED PLTF'S SUCCESSOR IN INTEREST**
FILED BY: HUERTA, JESUS LEAL
TENTATIVE RULING:

Plaintiff Belkis Leal Hernandez ("Successor-in-Interest") filed a Motion for Order to Appoint Deceased Plaintiff's Successor in Interest to Continue Action on February 9, 2026 (the "Motion to Substitute"), seeking an order to continue this action as the successor-in-interest to decedent plaintiff Jesus Leal Huerta ("Decedent"). The Motion to Substitute was set for hearing on June 22, 2026. The motion was advanced for hearing to April 20, 2026 by the Court's Order entered March 25, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the

successor in interest and that “[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.” *Id.*

The supporting declaration filed by the Successor-in-Interest here complies with those requirements. See Declaration of Belkis Leal Hernandez filed February 9, 2026, ¶¶1-6.

Disposition

The Court finds and rules as follows:

1. The Motion to Substitute is GRANTED.
2. The moving party’s submitted form of order will be entered by the Court.

9. 9:00 AM CASE NUMBER: C25-03031

CASE NAME: JOHN KEYS VS. DOES 1-50, INCLUSIVE

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: BONNEY SERVICES WEST, LLC

TENTATIVE RULING:

Defendant's motion to compel arbitration and for a stay is **GRANTED**. Plaintiff John A. Keys is ordered to arbitrate his claims against Defendant Bonney Services West, LLC. Under the agreement's delegation clause, the arbitrator shall determine whether this action or any part of it is arbitrable.

The Court hereby **STAYS** the entire action pending the conclusion of the arbitration proceeding, except that the Court sets an arbitration status conference on **December 7, 2026 at 9:00 a.m.** in Department 34. The parties shall file joint or separate statements regarding the status of the arbitration proceedings at least ten court days before the conference.

Background

On October 16, 2025, Plaintiff filed this action against "Bonney Plumbing, LLC, doing business as Bonney Plumbing, Sewer, Electrical, Heating & Air Conditioning," asserting nineteen causes of action arising from his employment as a commission-only salesperson, including wrongful termination and wage and hour violations. Plaintiff does not dispute that he signed an arbitration agreement covering his claims. Instead, he contends that Defendant's alleged failure to pay earned wages, provide written commission terms, and act in good faith constitutes a material breach that voids any obligation to arbitrate.

On December 1, 2025, Bonney Services West, LLC appeared in this action by filing this motion to compel arbitration and for a stay, contending that it has been erroneously sued as Bonney Plumbing, LLC. In support of the motion, Defendant submits an arbitration agreement signed by Plaintiff that identifies Plaintiff as "Employee" and "Bonnie Plumbing, HVAC & Electrical" as "Employer." (Guerrero Decl., Exh. A.)